Constitutional Law I **Professor Baude**
LAWS 40101
Final Exam, Fall 2018

The rules: This is an eight-hour take-home examination. It is open book. Feel free to use any print or electronic materials you like. But until the exam is over, you may not discuss the exam with any person—in this class or otherwise.

The exam has three questions, worth a total of 100 points.

Each question has a word limit. I won't read additional words. Some of the questions have multiple parts, worth different amounts of points. You can use your judgment as to how to allocate words within each part of a single question. *Remember to watch your word count.*

Advice: Though the exam is open-book, don't get too distracted by materials outside those in the book or the course materials. Some of the exam questions borrow from real-world examples, but they are hypotheticals and I've changed some of the details.

My advice is to sketch an outline to each of the questions before you actually begin to write. If you just dive in, you may get lost halfway through and you may run out of space.

Grading: Grades will be based on your understanding, analysis, and clarity of exposition (so please proofread). Final grades will be calculated in compliance with the law school's grading policies.

If there are additional facts you need to know, please say what they are and how they would affect your analysis. And of course when explaining your answers be sure to explain your reasoning. (Don't assume that I'll know you know the basics; show me!)

Question One. (30 points, 1050 words)

Congress has become concerned that western states are not doing enough to control wildfires, which in recent years have appeared with devastating regularity. Mitigating the costs of these wildfires can require restrictions on development, changes in forest management, water allocation, and aggressive fire response and prevention. Out of deference to federalism, Congress decides not to try to impose comprehensive regulations directly on these things. Instead, it passes new legislation (with the President's enthusiastic signature) to give states and people more incentive to work to prevent forest fires. That new legislation has two components.

First, in all states, the law imposes new conditions on federal spending. A state may only receive certain funding if it "passes regulation to substantially mitigate the risks of wildfires." A state is automatically in compliance with this condition if it has no major wildfires in a given year. If it does have a major wildfire, the Secretary of the Interior (a cabinet-level officer of the United States) must decide whether the state's regulations were enough to "substantially mitigate the risk[]." The Secretary's determination is subject to judicial review.

If a state is not in compliance with this condition, then it loses all support for fire suppression. That federal support comprises two major preexisting programs: First, there is the Fire Management Assistance Grant program, which reimburses a state for 75% of the money it spends on firefighting. (Last year, California spent about $800 million in firefighting, and so received a grant of about $600 million.) Second, there is the direct assistance of the United States Forest Service, which works directly to fight and prevent fires, on both federally-owned land and other land. The exact economic value of these services is difficult to quantify, but the United States Forest Service spends about $2 billion annually on firefighting nationwide. Under the new law, if a state is not in compliance, it cannot receive a Fire Management Assistance Grant, and the United States Forest Service cannot fight any fires in that state, and will instead be instructed to stand by and "watch it burn."

Second, in "fire-prone states," the law imposes an annual wildfire tax on all persons in the state if an uncontained wildfire has raged in their

state that year. The amount of the tax for each person is $1 for every 1000 acres destroyed by the wildfire. (One of the most destructive wildfire seasons in recorded memory affected 1,824,505 acres of land in California, so Congress reasonably expects that the tax will never be more than $2000 per person per year.) Persons who have low enough income that they are exempt from filing an income tax return are also exempt from the wildfire tax.

The "fire-prone states" are specifically designated in the statute as: Alaska, California, Idaho, Nevada, and Texas. According to generally accepted figures, these are the five states that have seen the most wildfire destruction in the past fifteen years.

The governor of California is very concerned about the new law and its effect on the state (whose budget is about $200 billion a year). He calls you for advice. He asks: Could our state or our citizens challenge the law in federal court? What would our arguments be, and which of them would be strongest?

Question Two (50 points, 1750 words)

Federal law provides a criminal defense attorney to all persons charged with serious crimes who are financially unable to afford one. The defense attorneys are a mix of public defenders, who are employees of the United States, and private attorneys who are compensated by the federal government for the cases they agree to take on.

Traditionally, both of these groups of attorneys have been heavily supervised by the federal courts in which they practice. Those courts, for instance, have appointed the head federal public defender in each office, decided on the criteria for allowing private attorneys to be appointed, reviewed requests for compensation and reimbursement, and decided how to allocate cases between all of those lawyers.

A federal committee spent years studying the operation of the criminal defense system and wrote a major report concluding that the system needs to be restructured. The report concludes that giving local federal courts the ability to govern the lawyers who practice in front of them creates numerous conflicts of interest to the detriment of the justice system.

The report proposes the creation of an Independent Defender Commission, within the judicial branch but outside the supervision of any federal court, and also outside the supervision of the judicial conference (which handles the administration of the federal courts).

The Commission would be given the independent power to establish any policies and rules necessary to carry out the federal defense system; the power to appoint the heads of each federal public defender office; responsibility for supervising, monitoring, and compensating defense lawyers; and the responsibility for submitting annual appropriations for the criminal defense system to Congress.

The Commission would have seven voting members. All of them would be appointed by the President, with the advice and consent of the Senate, for three-year terms without removal (except, of course, for impeachment). Their appointment would also have the following statutory constraints: No more than three of the commissioners could be sitting

federal judges. No more than four of the commissioners could belong to any one political party. And the President must make his choice from a slate of candidates prepared by the Chief Justice of the United States and a group of federal defense attorneys.

One commissioner dissented in part from this proposal, and argued that instead of being appointed by the President and the Senate, the commissioners should all be sitting federal judges, and that rather than being selected from a slate by the President and the Senate, they should be selected by other federal judges. He suggested that the district judges in each regional federal circuit could each elect one of their judges to the commission. So the commission would have up to eleven members, with one district judge each from the First Circuit, Second Circuit, Third Circuit, Fourth Circuit, etc.

Part A. (40 points)

You are a lawyer working for the Senate Judiciary Committee, which is considering legislation to implement the report. You are asked to prepare a short memo analyzing any constitutional problems raised by these two proposals.

Part B. (10 points)

What would be the best way to structure the commission that avoids all of these constitutional problems?

Question Three (20 points, 700 words)

Consider the following ten cases that we studied in class:

McCulloch v. Maryland

Gibbons v. Ogden

United States v. Darby

Wickard v. Filburn

Heart of Atlanta Motel v. United States

United States v. Lopez

Gonzales v. Raich

United States v. Comstock

Garcia v. San Antonio Metropolitan Transit Authority

Printz v. United States

Suppose you wanted to improve this body of law to create one that was both (1) better justified as a matter of constitutional interpretation, and (2) much more coherent and consistent. Which of these cases would you overrule in order to do that? Explain.

End of Exam.

REMINDER: Did you check your word count for each question?